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CASE #	CASE NAME	HEARING NAME
CVRI2504877	DOE ES VS COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

DEMURRER is SUSTAINED, *without leave to amend*, as to County of Riverside as to the 1st and 3rd – 5th causes of action (unless Plaintiff can provide the court with authority that could support her argument that immunity under Gov. Code section 844.6 does not bar her negligence claims made pursuant to general public entity liability pursuant to Gov. Code section 815.2.)

Plaintiff LL Jane Doe ES filed a complaint for damages on August 28, 2025, against Defendants Doe 1, Correctional Officer FNU Smith and Does 2 – 100. The Complaint alleges 5 causes of action for 1) violation of Bane Act, 2) sexual battery, 3) negligence, 4) negligent hiring/training/supervision/retention, and 5) negligent failure to warn, train, or educate.

County's demurs to the 1st, 3rd, 4th and 5th causes of action on the grounds they are time barred pursuant to CCP §340.1.

In addition, County demurs to the 1st cause of action on the grounds that a public entity is not liable to any prisoner pursuant to Gov. Code §844.6.

Moreover, the County demurs to the Complaint's First Cause of Action on the grounds that it is immune from direct liability for a Bane Act claim, pursuant to Government Code § 815(b).

Finally, County demurs to the Complaint's First Cause of Action on the grounds that the allegations plead are conclusory statements without facts and/or actions sufficient to constitute a cause of action.

The County demurs to the Complaint's Second Cause of Action on the grounds that a public entity is not directly liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability pursuant to Government Code §815(b). Additionally, the County demurs to the Complaint's Second Cause of Action under California Government Code § 815.2. Under California Government Code §815.2, "a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment..."

The County demurs to the Complaint's Third Cause of Action on the grounds that a public entity is not liable to any prisoner pursuant to Government Code §844.6. Furthermore, the County demurs to the Complaint's Third Cause of Action on the grounds that it is immune from direct liability pursuant to Government Code §815(b). Finally, the County demurs to the Complaint's Third Cause of Action on the grounds that

the allegations plead are conclusory statements without facts and/or actions sufficient to constitute a cause of action.

The County demurs to the Complaint's Fourth Cause of Action on the grounds that a public entity is not liable to any prisoner pursuant to Government Code §844.6. Furthermore, the County demurs to the Complaint's Fourth Cause of Action on the grounds that it is immune from direct liability pursuant to Government Code §815(b). Finally, the County demurs to the Complaint's Fourth Cause of Action on the grounds that the allegations plead are conclusory statements without facts and/or actions sufficient to constitute a cause of action.

The County demurs to the Complaint's Fifth Cause of Action on the grounds that it is duplicative of the Fourth Cause of Action. Moreover, a public entity is not liable to any prisoner pursuant to Government Code §844.6. Furthermore, the County demurs to the Complaint's Fifth Cause of Action on the grounds that it is immune from direct liability pursuant to Government Code §815(b). Finally, the County demurs to the Complaint's 5th cause of action on the grounds that the allegations plead are conclusory statements without facts and/or actions sufficient to constitute a cause of action.

In opposition, Plaintiff Doe asserts that Civil Code section 52.1 bars the County's Section 844.6 immunity defense on the Bane Act claim. Plaintiff Doe further asserts that the claims are timely under AB 218 and exempt from claim presentation as the Complaint was filed on the last day of the limitations period. Plaintiff Doe asserts that AB 218 superseded *Shirk* and extends the limitations period to all claims seeking damages resulting from childhood sexual assault. Plaintiff Doe asserts that the County is vicariously liable under *Mary M.* because Officer Smith used his custodial authority to perpetrate the abuse. Plaintiff Doe asserts that the Complaint adequately alleges a mandatory duty and the violations are grounded in county and State policy already plead, and the claims state sufficient facts to state causes of action. Lastly, Plaintiff Doe asserts that the 4th and 5th causes of action are not duplicative and the Complaint is not uncertain.

In reply, County asserts that it can only be liable where the plaintiff pleads an authorizing statute for the governmental tort recovery for which she seeks. County asserts that Plaintiff failed to provide valid statutory authority for her jail-based claims against the County because there is none. In enacting section 844.6 and declining to enact any retroactive exception for Bane Act liability under Civil Code §52.1(n), the Legislature meant just what it said: no liability is imposed upon a public entity by reason of an injury to or the death of a prisoner resulting from an act of the prisoner himself, acts of other prisoners, acts of prison employees, or acts of prison invitees, whether committed negligently or willfully. County asserts that section 844.6 broadly precludes actions against public entities for injury to prisoners regardless of the underlying theory of liability. Next county asserts that Civil Code §52.1(n) is not "clarifying legislation" and therefore does not apply retroactively to conduct that occurred before its effective date. This conclusion flows from California's strong statutory presumption against retroactivity, the general rule that amendments creating new substantive rights operate prospectively, and the principle that a legislative label of "clarification" does not automatically override these protections. California Civil Code section 3 expressly

provides that “no part of [the Civil Code] is retroactive unless expressly so declared.” County asserts that the clarifying language exception is narrow and does not apply here and 52.1(n) does not qualify as clarifying legislation.

Next, County asserts that the Bane Act claim is not extended under CCP §340.1, because section 340.1 does not apply to Bane Act claims, only to the recovery of damages suffered as a result of childhood sexual assault only and the cause of action does not seek damages resulting from sexual assault but those resulting from an alleged deprivation of a constitutional right. Further, County asserts that the Bane Act claim is barred for failure to present a Government Tort Claim. County further asserts that Plaintiff improperly attempts to expand the scope of the *Mary M.* exception as California courts have not found employers vicariously liable for the employee’s sexual misconduct.

The Complaint alleges in pertinent part as follows:

In approximately 2002, while Plaintiff was 17 and, while in the care and custody of County’s juvenile detention facility, Defendant Smith used his position as a corrections officer at the facility to repeatedly sexually abuse Plaintiff. County knew or should have known. Doe 1 was responsible for the supervision of their employees who worked at the facility.

Plaintiff’s date of birth is August 28, 1985. While in the facility, Plaintiff was completely dependent on Defendants for all necessities of life, including eating, drinking, sleeping, clothing, bathing, schooling, safety, and supervision. Therefore, Doe 1 had an obligation to ensure Plaintiff’s reasonable health, safety, and freedom while in its custody.

Defendant OFFICER SMITH, successfully, interfered with the Plaintiff’s Constitutional Rights to (a) be free from gender discrimination and harassment, (b) free speech, (c) be free from cruel and unusual punishment, and (d) Due Process under the United States’ Constitution, specifically the Fifth and Fourteenth Amendments. Defendant Smith operated under the authority granted him by Doe 1. to which Plaintiff had no relief except to submit to Defendant OFFICER SMITH’s wrongful threats, intimidation, harassment, violence, and coercion, which rendered Plaintiff’s submission and silence involuntary.

Defendant Doe 1 failed in their obligations to ensure the safety and wellbeing of Plaintiff as follows:

- a. Allowing Defendant OFFICER SMITH and Defendants DOES 2 through 100 to have unfettered and uncontrolled access to juveniles, including Plaintiff, who were reliant upon Defendants and Defendants’ employees for their care and safety.
- b. Allowing Defendant OFFICER SMITH and Defendants DOES 2 through 100 to be alone with juvenile detainees without supervision, in violation of County and State policy.

c. Allowing Defendant OFFICER SMITH and Defendants DOES 2 through 100 to be alone behind closed doors with juvenile detainees, without supervision.

d. Allowing Defendant OFFICER SMITH and Defendants DOES 2 through 100 to isolate juvenile detainees in various locations at Doe Facility.

e. Failing to provide Defendants DOES 2 through 100 with training on how to detect, prevent and report the sexual abuse of juvenile detainees at Doe Facility.

f. Failing to implement policies to prevent the sexual abuse of juvenile detainees at Doe Facility.

g. Failing to educate detainees at Doe Facility on how to report sexual abuse.

h. Permitting Defendant OFFICER SMITH and Defendants DOES 2 through 100 to remain in a position of authority and trust after Defendants knew or should have known Defendant OFFICER SMITH sexually abused Plaintiff and other juvenile detainees at Doe Facility.

To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) “[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally, a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound*

Indus., Inc. (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

First Cause of Action for Violation of Bane Act: The essence of a Bane Act claim, pursuant to Civil Code §52.1, is that the defendant, by the specified improper means, i.e., threats, intimidation or coercion, tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law; the Bane Act was enacted to address hate crimes but is not limited in its application to such conduct. (*Shoyoye v. County of Los Angeles* (2012) 203 Cal.App.4th 947, 955-956.)

A Bane Act claim ordinarily requires a tort claim presentation. Plaintiff asserts that the passage of AB 218, effective January 1, 2020, added Gov. Code section 905(m), which expressly exempts from the claims presentation requirement all claims brought pursuant to section 340.1 for damages suffered as a result of childhood sexual assault. Therefore, Plaintiff asserts that no tort claim was required for her Bane Act claim which she asserts is based on her sexual assault claims. However, In Gov. Code section 905, In the Legislature enumerated 15 types of claims against local public entities that are excepted from the mandatory filing requirement (Gov.Code, §905, subds (a)-(o)); claims for damages for violation of sections 51 and 52.1 are not among them. (See *Gatto v. County of Sonoma* (2002) 98 Cal.App.4th 744, 763.) Accordingly, regardless of the underlying nature of the Bane Act claim against County, Plaintiff was required to comply with the government tort claim process before she could bring a Bane Act claim. Accordingly, the court sustains the Demurrer, without leave to amend, as the Plaintiff acknowledges she did not file a government tort claim.

Third Cause of Action for Negligence (Gov. Code §§815.2 and 820), Fourth Cause of Action for Negligent Hiring, Training, Supervision, and Retention (Gov. Code §§815.2 and 820), and Fifth Cause of Action for Negligent Failure to Warn, Train or Educate (Gov. Code §§815.2 and 820): All three of these claims are negligence claims against County, which normally require as a prerequisite the filing of a government tort claim. Complaints that do not allege facts demonstrate either that a claim was timely presented or that compliance with the claims statute is excused are subject to a general demurrer for not stating facts sufficient to constitute a cause of action. (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990.)

Assembly Bill 218, which took effect January 1, 2020, revived claims for childhood sexual abuse, "that would otherwise be barred as of January 1, 2020, because the applicable statute of limitations, claim presentation deadline, or any other time limit had expired." (See Former CCP §340.1(g).) Prior to the enactment, former

Gov. code section 905(m) exempted from the claim presentation requirement “[c]laims made pursuant to Section 340.1 ... for the recovery of damages suffered as a result of childhood sexual abuse” with one significant limitation: “[t]his subdivision shall apply only to claims arising out of conduct occurring on or after January 1, 2009.” (*Coats v. New Haven Unified School Dist.* (2020) 46 Cal.App.5th 415, 424.) AB 218 eliminated the restriction to claims occurring on or after January 1, 2009. Accordingly, there is no tort claim requirement with respect to claims for damage suffered as a result of childhood sexual abuse.

The intent of AB 218 was “an aim ‘to expand the ability of victims of childhood sexual abuse to hold to account individuals and entities responsible for their injuries.’” (*Los Angeles Unified School District v. Superior Court* (2023) 14 Cal.5th 758, 777.) Retroactive waiver of the claim’s presentation requirement is a condition on the state’s consent to suit, not part of the state’s substantive liability and is therefore constitutional. (See *West Contra Costa Unified School Dist. v. Superior Court* (2024) 103 Cal.App.5th 1243.) Accordingly, as the claims against County all arise out of damages resulting from childhood sexual abuse, the Complaint is not subject to demurrer on the grounds that Plaintiff failed to comply with the tort claims process.

Next, County asserts that the claims against it are barred by the statute of limitations. However, “statutes of limitations may be extended by the Legislature without violating the constitution—those statutes provide only new remedies.” (See *Bickerdike v. State* (1904) 144 Cal. 681, 692.) Therefore, on its face, the Complaint is not barred by the statute of limitations, which was extended to the Legislature.

Next, County asserts that the Complaint fails to state facts sufficient to state a cause of action for negligence (based on any of the three theories presented in the 3rd – 5th causes of action). The Government Claims Act (GCA) sets forth the general rule of immunity for public entities, abolishing all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the state or federal constitution, or if a statute is found declaring them to be liable. (*County of Santa Clara v. Superior Court* (2023) 14 Cal.5th 1034, 1045.) To state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity. (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426, 440.)

Here, Plaintiff cites Gov. Code sections 815.2 in support of all three causes of action. Gov. Code section 815 provides that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (Gov. Code §815(a),) However, Gov. Code section 815.2 provides that “[a] a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would apart from this section have given rise to a cause of action against that employee or his personal representative.” (Gov. Code §815.2.)

In opposition, County asserts immunity pursuant to Gov. Code §844.6(a)(2), which provides that a public entity is not liable for an injury to any prisoner. “Prisoner” is defined to include an inmate of a prison, jail, or penal or correctional facility. Gov. Code,

§ 844. Prisoner as used in Government section 844.6(a)(2), encompasses “a ‘ward of a juvenile court declared under Welf. & Inst. Code section 602 and under placement by” the court. (*Patricia J. v. Rio Linda Union Sch. Dist.* (1976) 61 Cal.App.3d 278, 286.)

Plaintiff’s position is that section 844.6 is unavailable because Civil Code section 52.1, subdivision (n), clarified that such immunity does not apply to custodial-officer Bane Act claims, and because Plaintiff has adequately pleaded vicarious liability under sections 815.2 and 820.

Gov. Code section 820 provides that “a public employee is liable for the injury caused by his act or omission to the same extent as a private person.” (Gov. Code §820.) However, at issue in this motion is not whether or not Defendant Smith is immune from suit or subject to the provisions of Gov. Code §820, but whether County is immune from suit pursuant to Gov. Code §844.6, or if not, whether County may be vicariously liable for Smith’s actions under the negligence theories presented.

Plaintiff’s claims that 844.6 immunity does not apply because of the Bane Act claims against Officer Smith, lack merit. As previously addressed, Plaintiff’s Bane Act claim against County was subject to tort claim requirements, with which she did not comply.

As to Plaintiff’s claims that she has properly alleged a vicarious liability claim against County pursuant to Gov. Code §815.2, do not in any fashion address why such claims are not immune pursuant to Gov. Code §844.6.

“[A]ny general theory of liability against public entities [such as Gov. Code §815.2] is subordinate to the specific immunity provision for injuries to prisoners in section 844.6.” (*Towery v. State of California* (2017) 14 Cal.App.5th 226, 233.) Plaintiff has cited no authority to the contrary, nor presented any other argument upon which this court should find that she has stated claims for vicarious liability for negligence based on Gov. Code §815.2 that are not subject to the specific immunity provision set forth in Gov. Code §844.6. “Government Code section 844.6 does not leave any ambiguity about its applicability to a claim against a public entity under some other statute, such as [Gov. Code section 815.2], that simply creates a general legal duty.” Accordingly, the court sustains, without leave to amend, as to the 3rd – 5th causes of action unless Plaintiff can provide the court with authority to the contrary.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504877	DOE ES VS COUNTY OF RIVERSIDE	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Off Calendar based on the Ruling on the Demurrer